

25STCV33331 25STCV33331

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-03

Motion: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

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Case Number: 25STCV33331 Hearing Date: September 3, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

RAJDEV SINGH,

Plaintiff,

vs.

GENERAL MOTORS, LLC; AND DOES

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100, INCLUSIVE,

Defendants.

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CASE NO: 25STCV33331

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

Dept. 731

September 3, 2026

8:30 a.m.

Matter No. 17

Moving Party: Plaintiff, Rajdev Singh

Opposing Party: Defendant, General Motors, LLC

Notice: OK

Background Facts

Plaintiff Rajdev Singh brings this
action against Defendant General Motors, LLC ("GM") and Does 1 through 100,
inclusive, alleging various statutory claims arising from defects in a motor
vehicle purchased by Plaintiff in November 2024 and manufactured and/or
distributed by GM.

Now before the Court is Plaintiff's

opposed, June 3, 2026, motion for attorneys' fees and costs based on a settlement between the parties by way of a Code of Civil Procedure section 998 offer accepted by Plaintiff on May 13, 2026.

Notably, the record fails to reflect a notice of settlement at this time.

Motion for Attorneys' Fees and Costs

a. Legal Standard

A prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b).) Attorney's fees are also recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Fees and costs are recoverable where a party rejects an offer made pursuant to Code of Civil Procedure section 998 offer and later fails to obtain a more favorable judgment or award.

The Court begins this inquiry "with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (PLCM Group).) From there, the "lodestar figure may then be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid.) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Discussion

Plaintiff comes before the Court seeking an order for \$18,846.49 in fees and costs related to this action, comprised of: (1) \$10,092.50 (20.6 hours) in incurred attorney's fees; (2) an

additional \$2,500.00 in anticipated fees for Plaintiff's counsel to review GM's Opposition, draft the Reply brief, attend the hearing on this Motion, draft an opposition to GM's anticipated motion to tax costs, and attend the hearing thereto; (3) a 1.5 multiplier enhancement on attorneys' fees in the amount of \$5,046.25; (4) \$682.74 in actual costs and expenses; and (5) \$525.00 in anticipated costs and expenses for a Court reporter for the hearing on the instant Motion.

i. Reasonable

Fee Rates

Plaintiff's motion seeks the following rates for counsel: (1) Peter Maissian, Esq. at \$525.00 per hour; (2) Sina Rezvanpour, Esq., at \$625.00 per hour; and (3) Zachary Francey at \$425.00 per hour. (See Motion, Maissian Decl., ¶ 21, Ex. B [verified time records].)

GM's opposition does not dispute the requested fee rates, instead challenging the sought-after fees on the grounds of unreasonable or unrecoverable hours. (See, e.g., Opposition, pp. 4-8 [arguing that hours are excessive and recommending lower fee awards as calculated using Plaintiff's requested rates and GM's suggested hours].)

Based on the lack of dispute as to reasonable rate, the Court accepts the rates advanced by Plaintiff as reasonable for the marketplace in relation to similar legal matters.

ii. Reasonable

Hours

As for hours, Plaintiff argues for 20.6 hours reasonably incurred on this action by Plaintiff's counsel, while GM argues that only 8.6 were reasonably incurred, leaving a lodestar of \$4,432.50. (Compare Motion, p. 6, with Opposition, pp. 4-8.)

Initially, the Court notes that while Plaintiff claims to have expended 20.6 hours on this action through the date Plaintiff's motion was filed, Plaintiff's verified time records show only 19.3 hours expended by counsel. (Motion, Maissian Decl., ¶ 21, Ex. B.)

Proceeding to the merits, the Court

agrees that the hours presented by Plaintiff are either not recoverable or inflated.

As for non-recoverable hours, clerical hours appear to be woven into certain of the time entries and combination of multiple tasks into single entries. (See, e.g., Motion, Maissian Decl., ¶ 21, Ex. B at 11/13/25 [billing for, e.g., "initial file organization"].) Because the combination of these hours cannot be separated into neat clerical and non-clerical categories, the Court addresses hours as a whole.

When a voluminous fee application is made, the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 40, citing *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.) A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case. (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744.) But the court must clearly explain its reasons for choosing the particular negative multiplier that it chose; otherwise, the reviewing court is unable to determine that the court had valid, specific reasons for its across-the-board percentage reduction. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

Here, the Court determines that the hours spent on this action do not reflect the hours that a reasonable practitioner should have expended in litigating this action to settlement. The hours spent preparing the case for filing in November 2025, for example, amount to 7.1 hours of preparation into a case largely involving issues often repeated in lemon law actions.

However, the Court does not agree with GM that only 8.6 hours of work are reasonable. Instead, the Court reduces the requested hours by 30% from (1) 10.9 hours times 0.70 for 7.63 hours reasonably spent by Peter Maissian and (2) 4 hours times 0.70 for 2.8 hours reasonably spent by Sina Rezvanpour. The Court, however, determines that the 4.4 hours expended on this action by Zachary Francey were reasonable.

iii. Multiplier

The Court determines that despite the contingent nature of representation and despite the skill displayed by counsel, no multiplier is merited here as the case did not present novel questions and the time records reflect sporadic work spanning several months and not on its face involving difficult questions.

iv. Fees

Redux

Fees for actual work to date are accordingly GRANTED in the amount of \$7,625.75, comprised of:

(1) Fees of \$4,005.75 for work by Peter Maissian, Esq., at a rate of \$525.00 per hour, times 7.63 hours reasonably expended on this action;

(2) Fees of \$1,750.00 for work by Sina Rezvanpour, Esq., at a rate of \$625.00 per hour, times 2.8 hours reasonably expended on this action; and

(3) Fees of \$1,870.00 for work by Zachary Francey, Esq., at a rate of \$425.00 per hour, times 4.4 hours reasonably expended on this action.

The Court also GRANTS \$2,500.00 in fees for replying to the opposition and attending this hearing. (See Reply, Maissian Decl., ¶ 3, Ex. 1 [\$1,800.00 in reply fees alone, not including appearance].)

The total fees award is thus \$7,625.75 plus \$2,500.00, totaling \$10,125.75.

v. Costs

The Court finds that actual costs of \$682.74 are reasonably supported by Plaintiff's verified time records. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395-397 [verified time records entitled to credence absent clear indication they are erroneous]; see Opposition, p. 10 [contending verified time records not enough here].)

The Court also GRANTS court reporter costs up to \$525.00 with the caveat that such costs will be deducted from the final offer lacking evidence of such costs at the hearing for Plaintiff's motion.

The total award of costs is thus \$1,207.74.

c. Conclusion

Plaintiff's motion for attorneys' fees and costs is GRANTED, in part, in the amount of \$11,333.49, comprised of \$10,125.75 in total fees, and \$1,207.74 in total costs.

This order SHALL NOT take effect until Plaintiff Rajdev Singh serves and files a notice of settlement providing all necessary information, including a date by which a dismissal is expected, as applicable.

Plaintiff Rajdev Singh is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 3, 2026 _____

MARK C. KIM

Judge of the
Superior Court